

A MEASURE

PASSED BY

THE NATIONAL ASSEMBLY OF THE CHURCH OF ENGLAND

To provide for the establishment of schemes for the inspection of churches by architects at least once in every five years; and for purposes connected therewith.

[29th March, 1955]

Whereas by the Constitutions and Canons Ecclesiastical of the Church of England it was provided that the churchwardens should take care to provide that churches be well and sufficiently repaired, kept and maintained, and that every archdeacon should survey the churches of his jurisdiction once in every three years in his own person or cause the same to be done:

And whereas all powers, duties and liabilities of the churchwardens relating to the care, maintenance, preservation and insurance of the fabric of the church have been transferred to and are vested in the parochial church council:

And whereas it is expedient that every church should be inspected by an architect at least once in every five years.

1.—(1) As soon as may be after the passing of this Measure and in any case not later than three years thereafter the Diocesan Conference of every diocese to which this Measure applies shall establish a scheme to provide for the inspection of every church in the diocese at least once in every five years.

Diocesan
Conferences
to establish
schemes for
inspection of
churches.

(2) Every scheme:—

- (a) shall provide for the establishment of a fund by means of contributions from parochial, diocesan or other sources;
- (b) shall provide for the payment out of such fund or otherwise of the cost of the inspection of churches in the diocese;
- (c) shall provide for the appointment of an architect or architects approved by the advisory committee to inspect the churches in the diocese and to make a report on every church inspected;
- (d) shall provide in the case of every church inspected for a copy of the report so made to be sent to the archdeacon of the archdeaconry and to the parochial church council of the parish, in which the church is situate; and
- (e) may contain such other provisions not inconsistent with this Measure as the Diocesan Conference shall think fit.

(3) The Diocesan Conference shall have power at any time or times to establish a further scheme taking the place of any prior scheme but so that every such further scheme shall be for the purpose specified in subsection (1) of this section and shall comply with the provisions of subsection (2) thereof.

(4) Any scheme made in pursuance of this section and passed at a meeting of the Diocesan Conference shall be signed by the Chairman of that meeting and shall come into operation as from the date on which it is so signed.

Power for
archdeacon
to ensure
inspection of
churches once
in five years.

2.—(1) Where the archdeacon of any archdeaconry finds at a survey of the churches of his jurisdiction or at any other time that a church in his archdeaconry has not been inspected to his satisfaction by an architect for a period of at least five years, he may serve upon the parochial church council of the parish in which the church is situate a notice in writing requiring the council to cause the church to be inspected in accordance with the scheme made in pursuance of section one of this Measure for the diocese in which the church is situate.

(2) At any time after the expiration of three months from the date when the said notice was served, the archdeacon, with the consent of the bishop, may, if the church has not been so inspected in the meantime, himself make arrangements for the required inspection and report.

Cost of
inspection
arranged by
archdeacon.

3. In any case where a church has been inspected pursuant to a notice served, or to arrangements made by the archdeacon under section two of this Measure, the cost of such inspection as certified by the archdeacon shall be paid out of the fund established by the scheme mentioned in that section.

Parishes
without
parochial
church
councils.

4.—(1) Where at any material time a parish has no parochial church council, the provisions of this Measure (and of any scheme made under section one thereof) with respect to notices to be sent to, and other acts and things to be done to or by, a parochial church council shall, as regards that parish, if there are churchwardens thereof, have effect as if the churchwardens were the parochial church council.

(2) For the purpose of this section, a certificate by the bishop of a diocese stating that at any time specified in the certificate a particular parish in the diocese had no parochial church council shall be conclusive.

Service
of notices.

5. Any notice required or authorised by this Measure to be served on a parochial church council or churchwardens may be served:—

(a) in the case of a parochial church council, by sending it by post in a registered letter addressed to the secretary

of the council by his name at his usual, or last known, residence, or, if his name or residence is unknown, then in such a letter addressed to him by the title of secretary of the council in question at the usual, or last known, residence of the incumbent of the parish;

- (b) in the case of the churchwardens of a parish, by sending it by post in registered letters addressed to any two of them at their usual, or last known, residences, or, if there is only one churchwarden, by sending it by post in such a letter addressed to him at his usual, or last known, residence.

6. In this Measure the following expressions have the meanings hereby respectively assigned to them:—

“ advisory committee ” means the advisory committee for the care of churches of the diocese in question appointed under the Faculty Jurisdiction Measure, 1938;

1 & 2 Geo. 6.
No. 6.

“ the bishop ” when used with reference to a church means the bishop of the diocese in which the church is situate (including during a vacancy in the see the guardian of the spiritualities thereof);

“ diocese ” in the case of the diocese of Winchester does not include the Channel Islands.

7.—(1) This Measure shall extend to the whole of the Provinces of Canterbury and York, except the Channel Islands and the Isle of Man.

Extent and
short title.

(2) This Measure may be cited as the *Inspection of Churches Measure, 1955*.

PRINTED BY JOHN ROUGHTON SIMPSON, C.B.

Controller of Her Majesty's Stationery Office and Queen's Printer of Acts of Parliament